

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/07/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0008655

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK: C. IBARRA

PLAINTIFF: RICHARD H. BHIMJI

vs.

DEFENDANT: C. O. GARCIA

NATURE OF PROCEEDINGS: DEMURRER

RULING

Defendant L. Garcia’s demurrer to the complaint of plaintiff Richard H. Bhimji is **overruled**.

Legal Standard

“... A general demurrer will lie where the complaint “has included allegations that *clearly* disclose some defense or bar to recovery.” A demurrer can be used only to challenge defects that appear on the face of the complaint or from matters outside the pleading that are judicially noticeable. ‘To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action.’ The demurrer admits the truth of all material facts properly pleaded, including all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law.” (*Simple Avo Paradise Ranch, LLC v. Southern California Edison Co.* (2024) 102 Cal.App.5th 281, 288-289, citations omitted.)

First Cause of Action – Civil Code Section 52.1 (The Bane Act)

Plaintiff’s cause of action clearly alleges that Defendant retaliated against him because of his grievance against S. Marquez. Defendant offers no meaningful argument regarding retaliation in his moving brief and instead waits until the reply. Contrary to his explanation, Plaintiff did not “[s]hift[] his position into a retaliation theory” in his opposition to the demurrer.

The cases cited by Defendant in his reply involve First Amendment retaliation claims and a claim brought pursuant to 42 United States Code section 1983. This cause of action is neither. Further, *Quiroz v. Short* (N.D.Cal. 2015) 85 F.Supp.3d 1092, which Defendant cites to show what Plaintiff must allege to survive a pleading motion, involved a motion for summary judgment and not a pleading motion.

Plaintiff is required to show that Defendant acted as he did because Plaintiff filed the grievance against Marquez. The Court finds that Plaintiff’s allegations are sufficient. Plaintiff alleges that Defendant drove from the facility he worked at to San Quentin “in order to search the plaintiff’s

cell.” He said to Plaintiff, “You thought you got away from Jamestown” and “You remember Marquez don’t you.” (§19.) Defendant and Marquez are coworkers. (§22.) There is nothing in the complaint to indicate that Defendant would have any other reason to go to San Quentin to search Plaintiff’s cell that would involve Marquez.

Second Cause of Action – Conversion

“The essential elements of conversion are “(a) plaintiff’s ownership or right to possession of personal property, (b) defendant’s disposition of property in a manner inconsistent with plaintiff’s property rights, and (c) resulting damages.” ...” (*Foster v. Sexton* (2021) 61 Cal.App.5th 998, 1021-1022.) Defendant argues that Plaintiff did not have the right to possess the radio or CD player because they were contraband. Defendant is raising a factual issue that cannot be resolved on demurrer. Plaintiff’s allegations do not show that the radio and CD player were contraband. Defendant’s reliance on the cell search receipt attached as exhibit B to the complaint is not sufficient. Even if it stated that those items were altered, which it does not, the Court could not accept that as true.

In reply, Defendant argues that Evidence Code section 664 requires the Court to presume that he was regularly performing his duties. Where section 664 is applicable, “the presumption shifts the burden of proof to the party against whom it operates to establish the nonexistence of the presumed fact.” (*Morgenstern v. Department of Motor Vehicles* (2003) 111 Cal.App.4th 366, 373.) Thus, assuming section 664 applies, Plaintiff will have to **prove** that the items were not altered. Defendant additionally argues that it would not be reasonable for the Court to infer he was committing a crime. Plaintiff has alleged that Defendant converted his property. The Court must accept that allegation as true.

Immunity

Defendant argues he is immune from liability pursuant to Government Code section 820.4. That section states provides that “[a] public employee is not liable for his act or omission, exercising due care, in the execution or enforcement of any law. ...” Defendant again raises a factual issue that cannot be resolved on demurrer since his argument assumes that Plaintiff’s property was contraband.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615162449?pwd=e5SqeATq2HOsxxD7Fhrl3Q7qPFgFZa.1>

Meeting ID: 161 516 2449

Passcode: 073961

If you are unable to join by video, you may join by telephone by calling 1-669-254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court’s website: marin.courts.ca.gov